

26TRCV01152 26TRCV01152

County: los-angeles

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Case Number: 26TRCV01152 Hearing Date: August 18, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

KATRINA

ACCARDO, an individual

Plaintiff,

Case No.:

26TRCV01152

vs.

[Tentative]

Granted

HYUNDAI

MOTOR AMERICA, a corporation;

and DOES

1 through 10, inclusive

Defendants.

Hearing

Date: August

18, 2026

Moving Parties: Defendant Hyundai Motor America

Responding

Party: Plaintiff Katrina Accado

HEARING: Motion to Compel

Arbitration

The

Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion to Compel

Arbitration.

BACKGROUND

On May 1, 2026, Plaintiff Katrina

Accardo filed the Complaint against Defendant Hyundai Motor America, alleging causes of action for violations of the Song-Beverly Act and violation of § 17200.

On May 22, 2026, Defendant filed the Motion to Compel Arbitration.

On August 4, 2026, Plaintiff filed the Opposition.

On August 11, 2026, Defendant filed the Reply.

LEGAL STANDARD

The Federal Arbitration Act (the "FAA")

applies in both federal and state courts to contracts evidencing a transaction involving interstate commerce. (9 U.S.C. §§ 1-2; *Southland Corp. v. Keating* (1984) 465 U.S. 1, 12.) The FAA preempts conflicting state law. (*Preston v. Ferrer* (2008) 552 U.S. 346, 353.) The party that contends the FAA applies bears the burden to demonstrate that the arbitration agreement is in a "contract evidencing a transaction involving commerce." (*Woolls v. Super. Ct.* (2005) 127 Cal.App.4th 197, 211.)

Under Code of Civil Procedure section 1281.2,

"[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement."

DISCUSSION

The instant case

arises out of the purchase of a 2022 Hyundai Palisade. The warranty booklet included with the car also included an arbitration agreement. Defendant moves to compel arbitration based on the agreement in the warranty booklet.

Agreement to Arbitrate:

PLEASE READ THIS SECTION IN ITS ENTIRETY AS IT AFFECTS YOUR RIGHTS THIS SECTION DOES NOT PRECLUDE YOU FROM FIRST PURSUING ALTERNATIVE DISPUTE RESOLUTION THROUGH BBB AUTO LINE AS DESCRIBED IN THE "ALTERNATIVE DISPUTE RESOLUTION" PROVISION IN SECTION 3 OF THIS HANDBOOK.

If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising,

unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. If either you or we elect to resolve our dispute via arbitration (as opposed to in a court of law), such binding arbitration shall be administered by and through the American Arbitration Association (AAA) under its Consumer Arbitration Rules.

IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY USING THE VEHICLE, OR REQUESTING OR ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE CONTACT US AT WITHIN THIRTY (30) DAYS OF YOUR PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION PROVISION.

(Goel Decl., Exhibit 1.)

Existence of Valid Arbitration Agreement and
Claims Covered by Arbitration Clause

“[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence...” (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) “In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties’ intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made.” (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) “To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified, and the issue is whether that controversy is within the scope of the contractual arbitration clause.” (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.) “Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (California

Correctional Peace Officers Ass'n v. State (2006) 142 Cal.App.4th 198, 205.)

"[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Giuliano, *supra*, 149 Cal.App.4th at p. 1284.)

"The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: Because the existence of the agreement is a statutory prerequisite to granting the [motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence." (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) However, the burden is a three-step framework. "First, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature. Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion." (Ibid.) "For this step, it is not necessary to follow the normal procedures of document authentication." (Ibid.)

"If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (Ibid.) "The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (Ibid.)

Last, "if the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (Ibid.)

Plaintiff argues

that she never agreed with Defendant to arbitrate any dispute, and that the right to compel arbitration rests entirely on a contract, so that a petition to compel is simply a suit in equity to enforce that contract. (*Momot v. Mastro* (9th Cir. 2011) 652 F.3d 982, 987.)

Plaintiff argues

that the arbitration clause in Defendant's owner's handbook and warranty information is unenforceable and unconscionable because there is no contract at all. She emphasizes that the arbitration policy does not reach parties who have not agreed to arbitrate, that mutual assent is essential and is judged by the parties' outward manifestations, and that the party seeking arbitration bears the burden of proving an agreement by a preponderance of the evidence. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 787.) Plaintiff argues that she made no such manifestation and cannot be bound merely by using the vehicle or by unknowingly receiving a warranty booklet, which explains warranty terms and offers an opt out rather than waiving her right to court. (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748.) She relies on the Ninth Circuit's holding that an opt-out arbitration provision in a manufacturer's warranty brochure is unenforceable where the buyer neither signed nor otherwise showed intent to treat silence as acceptance. (*Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279, 1286, 1290.) Plaintiff stresses that there is no evidence she signed anything, that the booklet was ever presented to her, or that Defendant signed it, and that no signature line exists.

Plaintiff also argues

that equitable estoppel does not apply because it is premised on an agreement to arbitrate and permits a nonsignatory to compel arbitration only where the claims are founded in and inextricably bound up with the contract containing the arbitration clause, not merely caused by it. (*JSM Tuscany, LLC v. Superior Court* (2011) 193 Cal.App.4th 1222, 1236-1237.) Here, Plaintiff argues her claims arise from warranties received directly from Defendant under the Song-Beverly Consumer Warranty Act and do not depend on the retail installment sale contract, so a but-for test cannot support estoppel. Finally, because her causes of action arise chiefly under California's pro-consumer protection statutes, Plaintiff argues that estoppel is particularly inappropriate. (*Murphy v. DirecTV, Inc.* (9th Cir. 2013) 724 F.3d 1218, 1231, fn. 7.)

In reply, Defendant

argues that mutual assent is not necessary because equitable estoppel independently compels arbitration, and that Plaintiff focuses on the absence of assent while avoiding the estoppel argument advanced in the motion. Defendant contends that Plaintiff received the Owner's Handbook and Warranty Information when she purchased the 2022 Hyundai Palisade on November 4, 2021, that the handbook is also available online, and that Plaintiff's own Complaint acknowledges the information was provided to her at the time of purchase. Defendant argues that the express written warranty stated, in bold capital letters, that by using the vehicle or requesting or accepting benefits under the warranty, including having any repairs performed under warranty, the owner agrees to be bound by its terms, and that the warranty contains a binding arbitration provision allowing either party to elect arbitration of disputes concerning the purchase or performance of the vehicle.

Defendant further argues

that Plaintiff concedes the vehicle was purchased in California, the repairs were performed in California, and she sued expressly on the warranty, so that her claims depend on the warranty that includes the arbitration agreement. Defendant contends that even assuming Plaintiff could establish a lack of traditional contractual assent, equitable estoppel independently requires arbitration, because a plaintiff who sues on a contract may be estopped from repudiating that contract's arbitration clause, and a nonsignatory who receives a direct benefit from a contract containing an arbitration clause is estopped from refusing to comply with it. (JSM Tuscany, LLC v. Superior Court (2011) 193 Cal.App.4th 1222, 1239-1240.) Defendant concludes that, having accepted the benefits of the warranty by seeking warranty repairs and filing this complaint, Plaintiff is bound by the arbitration provision and Defendant is entitled to compel arbitration of her claims.

In *Kostandian v.*

American Honda Motor Co., Inc. (2026) 120 Cal.App.5th 872, the Court found that the defendant met its initial burden by presenting a copy of the warranty booklet, reciting its terms verbatim, and providing the necessary allegations, which shifted the burden to the plaintiff, who then produced no evidence. (Id. at 882.)

Here, Defendant has provided the warranty booklet included with the car that contained the arbitration agreement. Defendant can

meet its initial burden by merely reciting the terms of the arbitration agreement. (Gamboa, supra, 72 Cal.App.5th 158, 165.) Thus, the Court finds that Defendant has met its initial burden. In response, Plaintiff has failed to provide a declaration or any other evidence contesting the arbitration agreement. Furthermore, Plaintiff's reliance on Norcia does not change the result. Norcia involved a nonwarranty dispute and expressly reserved whether a plaintiff who sues on the warranty may be compelled to arbitrate claims arising out of that warranty. (Norcia, supra, 845 F.3d 1279, 1287-1288.) Here, Plaintiff sues for breach of the express written warranty contained in the same booklet as the arbitration provision, the situation Norcia left open and Kostandian resolved in favor of arbitration. (Kostandian, 120 Cal.App.5th 872, 883-884.) Thus, because Plaintiff received the booklet with the vehicle and now sues to enforce the warranty it contains, Plaintiff has not met his burden of showing a lack of assent.

Therefore, the
Court grants the Motion to Compel Arbitration.